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(3) CF 1001

IN THE HIGH COURT OF JUDICATURE AT BILASPUR

(C.G.)

Single B

ELECTION PETITION No. 14/2004

PETITIONER

Shivratan Sharma
Aged about 43 years
S/O Shri Ramdayal Sharma
R/O Subhash Ward,
Bhatapara, District
Raipur (Chhattisgarh)

VERSUS

RESPONDENTS

1. S Chaitram Sahu
R Aged about 53 years
S/O Runaram Sahu
R/O Mopka, Bhatapara
District Raipur
(Chhattisgarh)
2. S Khemdas Tandan
Aged about 45 years
S/O not known
R/O Village Budgahan
Post Bhatbhera
Tahsil Simga
District Raipur
(Chhattisgarh)
3. S Hardeep Singh @ Raju
Aged about 40 years
S/O Not known
Tilda Road, Simga
Tahsil Simga
District Raipur
(Chhattisgarh)

Sd/-
Atish K. Agnihotri
Judge



S 4. Debin Bai Netam

(6)

Aged about 50 years

W/O Not known

R/O Vill. Lawar tahsil

Simga district Raipur

(Chhattisgarh)

5.

Bhagat Ram

Aged about 40 years

S/O Not known

R/O Village Chakarvay

Post Damakheda

Tahsil Simgh

District Raipur

(Chhattisgarh)

6.

Radhelal Aadil

Aged about 53 years

S/O Not known

R/O Village & Post

Datrengi, Tahsil

Bhatapara, District

Raipur (Chhattisgarh)

7.

Mohan Dhikde

Aged about 40 years

S/O Not known

R/O Village Kukrachunda

Post Mohbhatta,

District Raipur

(Chhattisgarh)

8.

Videshi Tandan

Aged about 70 years

S/O Not known

R/O Village Senderi

Post Bhatapara

District Raipur

(Chhattisgarh)

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ELECTION PETITION UNDER SECTION 80/80A, READ
WITH SECTION 100 & 101 OF THE REPRESENTATION OF
THE PEOPLE ACT, 1951



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HIGH COURT OF CHHATTISGARH : BILASPUR

ELECTION PETITION NO.14 OF 2004

PETITIONER

Shivratn Sharma

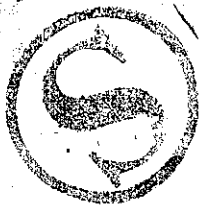
Versus

RESPONDENTS

Chaitram Sahu & Others

Post for pronouncement of judgment & order on ...^{2nd}...day of May, 2011

Sd/-
Satish K. Agnihotri
Judge



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HIGH COURT OF CHHATTISGARH : BILASPUR

ELECTION PETITION NO.14 OF 2004

PETITIONER

Shivratan Sharma

Versus

RESPONDENTS

Chaitram Sahu & Others

(Election Petition under Section 80/80A read with Section 100 & 101 of the Representation of the People Act, 1951)

Single Bench : Hon'ble Shri Satish K. Agnihotri, J.

Present :- Shri Sudhir Agrawal, Advocate for the petitioner.

Shri Pradeep Saxena with Ms. Pankhuri Saxena, Advocates for the respondent No.1.

ORDER

(Delivered on this 2nd day of May, 2011)

1. The instant election petition has been filed under the provisions of Sections 80/80A read with Sections 100 & 101 of the Representation of the People Act, 1951 (*for short "the RP Act, 1951"*) by the petitioner, who contested the general election 2003 of the Chhattisgarh Legislative Assembly from segment No.46, Bhatapara constituency. The respondent No.1 was declared as elected candidate. The election was held on 1-12-2003 on the basis of nomination papers filed between 7-11-2003 to 14-11-2003. Result of the election was declared on 4-12-2003 holding the respondent No. 1 as returned candidate (*hereinafter referred to as "the returned candidate"*).
2. It is pertinent to mention here that the term of the State Legislative Assembly election 2003 has come an end after completion of five years and the respondent No.1 was again elected as Member of the Chhattisgarh State Legislative Assembly in 2008.

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3. The petitioner filed the petition seeking declaration of the election of the returned candidate from segment No.46, Bhatapara for State Legislative Assembly as void and further that the petitioner be declared elected from the aforesaid constituency.
4. Case of the petitioner is that the petitioner has filed this petition seeking declaration of the respondent No.1 as returned candidate to be void on the ground of corrupt practice under the provisions of Section 100 (1) (b) read with (d) (ii) of the RP Act, 1951.
5. The petitioner has averred in the election petition that the information submitted by the returned candidate in the affidavit filed along with the nomination form does not disclose the correct facts. The returned candidate has concealed several relevant facts in respect of his movable and immovable properties. Thus, the same was violative of the provisions of Sections 33A and 33B of the RP Act, 1951. The Returning Officer has failed to perform his statutory obligation under the provisions of Section 36 by accepting the nomination papers of the returned candidate wrongly. Non-furnishing of detailed information as required under Section 33A (1) (i) is an offence punishable with imprisonment for two years or more. Even non-submission of the information comes within the definition of 'corrupt practice' under the provisions of the RP Act, 1951. Thus, the election of the returned candidate may be declared as void under the provisions of Section 100 (1) (b) read with (d) (ii) of the RP Act, 1951.
6. It is further averred that the filing false affidavit invokes penalty as prescribed under Section 125A. The petitioner has discovered after election result was announced that the returned candidate in his affidavit along with the nomination form has not disclosed complete facts and had suppressed and concealed, the material facts. Thus, acceptance of nomination papers, as aforesaid, was bad.



7. The returned candidate has deliberately suppressed the material facts with regard to his properties including those of his spouse and children, which has adversely affected the fundamental and constitutional rights of the elector/voter. The returned candidate has further published and circulated certain leaflets/pamphlets against the caste and status of the petitioner that the petitioner was not an original resident of State of Chhattisgarh and comes from other State to mislead the voters. The expenses incurred by the returned candidate in publication of the pamphlets were not shown in the electoral expenses after he was declared as returned candidate. The said action of the returned candidate is violative of mandatory provisions and tantamounts to corrupt practice.
8. In response to the averments made in the election petition, the returned candidate submitted his return on 14-2-2007 raising preliminary objections about the maintainability of the election petition. The returned candidate seeks dismissal of the petition on further ground that the petitioner has not raised any ground to challenge the election of the returned candidate. The election petition is vague and does not disclose cause of action on the basis of specific allegations and, as such, lacks material facts and particulars of corrupt practice. The petitioner further does not disclose the name of the persons alleged to have indulged in corrupt practice nor have they been impleaded as party/respondent. Proper affidavit in support of corrupt practices as contemplated by Rule 94 of the Conduct of Elections Rules, 1961 (for short "the Rules, 1961") has not been filed. The requirement of filing of additional affidavit giving details of material facts have also not been complied with. The verification is not in accordance with the provisions of Section 83 of the RP Act, 1951. The returned candidate has not been served with the true copies of the election

petition. The petitioner has neither annexed nor scheduled any document to the petition as required under the provisions of law and on that ground also the petition deserves to be dismissed.

9. On the merit, the returned candidate submitted that the respondent No.2 was not the Returning Officer for the Assembly election. The interpretation of Sections 33A & 33B is not just and proper. It is submitted by the returned candidate that for want of material facts it is not possible to submit the response and the same are specifically incorrect and denied. The returned candidate has not created ill-will against the petitioner or his prestige in the society. The returned candidate has not committed any corrupt practice.
10. Without considering the objection of the returned candidate, the issues on merit were framed. In the aforesaid background, the question "asto if the issues on merit have been framed, whether the preliminary objection of the respondent No.1 on maintainability of the election petition may be decided", arises for consideration.
11. It is useful to refer the relevant provisions of the RP Act, 1951 for proper adjudication of the dispute.
12. Section 81 of the RP Act, 1951 provides for presentation of petitions stating therein that election may be presented on one or more of the grounds specified in sub-section (1) of Section 100 and Section 101 to the High Court by any candidate at such election or any elector within forty-five days from the date of election, but not earlier than the date of election of the returned candidate or if there are more than one returned candidate at the election and dates of their election are different, the later of those two dates.

"81. Presentation of petitions.—

- (1) An election petition calling in question any election may be presented on one or more of the grounds specified in sub-section (1) of Section 100 and Section

101 to the High Court by any candidate at such election or any elector within forty-five days from, but not earlier than the date of election of the returned candidate or if there are more than one returned candidate at the election and dates of their election are different, the later of those two dates.

Explanation.—In this sub-section, “elector” means a person who was entitled to vote at the election to which the election petition relates, whether he has voted at such election or not.

(2) [Omitted]

(3) Every election petition shall be accompanied by as many copies thereof as there are respondents mentioned in the petition and every such copy shall be attested by the petitioner under his own signature to be a true copy of the petition.

82. Parties of the petition.—A petitioner shall join as respondents to his petition—

(a) where the petitioner, in addition to claiming declaration that the election of all or any of the returned candidates is void, claims a further declaration that he himself or any other candidate has been duly elected, all the contesting candidates other than the petitioner, and where no such further declaration is claimed, all the returned candidates; and

(b) any other candidate against whom allegations of any corrupt practice are made in the petition.

83. Contents of petition.—(1) An election petition—

(a) shall contain a concise statement of the material facts on which the petitioner relies;

(b) shall set forth full particulars of any corrupt practice that the petitioner alleges, including as full a statement as possible of the names of the parties alleged to have committed such corrupt practice and the date and place of the commission of each such practice; and



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(c) shall be signed by the petitioner and verified in the manner laid down in the Code of Civil Procedure, 1908 (5 of 1908) for the verification of pleadings:

Provided that where the petitioner alleges any corrupt practice, the petition shall also be accompanied by an affidavit in the prescribed form in support of the allegation of such corrupt practice and the particulars thereof.

(2) Any schedule or annexure to the petition shall also be signed by the petitioner and verified in the same manner as the petition.

86. Trial of election petitions.—

(1) The High Court shall dismiss an election petition which does not comply with the provisions of Section 81 or Section 82 or Section 117.

Explanation.—An order of the High Court dismissing an election petition under this sub-section shall be deemed to be an order made under clause (a) of Section 98.

(2) As soon as may be after an election petition has been presented to the High Court, it shall be referred to the Judge or one of the Judges who has or have been assigned by the Chief Justice for the trial of election petitions under sub-section (2) of Section 80-A.

(3) Where more election petitions than one are presented to the High Court in respect of the same election, all of them shall be referred for trial to the same Judge who may, in his discretion, try them separately or in one or more groups.

(4) Any candidate not already a respondent shall, upon application made by him to the High Court within fourteen days from the date of commencement of the trial and subject to any order as to security for costs which may be made by the High Court, be entitled to be joined as a respondent.

Explanation.—For the purposes of this sub-section and of Section 97, the trial of a petition shall be deemed to commence on the date fixed for the respondents to appear before the High Court and answer the claim or claims made in the petition.



(5) The High Court may, upon such terms as to costs and otherwise as it may deem fit, allow the particulars of any corrupt practice alleged in the petition to be amended or amplified in such manner as may in its opinion be necessary for ensuring a fair and effective trial of the petition, but shall not allow any amendment of the petition which will have the effect of introducing particulars of a corrupt practice not previously alleged in the petition.

(6) The trial of an election petition shall, so far as is practicable consistently with the interests of justice in respect of the trial, be continued from day to day until its conclusion, unless the High Court finds the adjournment of the trial beyond the following day to be necessary for reasons to be recorded.

(7) Every election petition shall be tried as expeditiously as possible and endeavour shall be made to conclude the trial within six months from the date on which the election petition is presented to the High Court for trial.

87. Procedure before the High Court.—(1) Subject to the provisions of this Act and of any rules made thereunder, every election petition shall be tried by the High Court, as nearly as may be, in accordance with the procedure applicable under the Code of Civil Procedure, 1908 (5 of 1908) to the trial of suits:

Provided that the High Court shall have the discretion to refuse, for reasons to be recorded in writing, to examine any witness or witnesses if it is of the opinion that the evidence of such witness or witnesses is not material for the decision of the petition or that the party tendering such witness or witnesses is doing so on frivolous grounds or with a view to delay the proceedings.

(2) The provisions of the Indian Evidence Act, 1872 (1 of 1872), shall, subject to the provisions of this Act, be deemed to apply in all respects to the trial of an election petition.

100. Grounds for declaring election to be void.—(1) Subject to the

provisions of sub-section (2) if the High Court is of opinion—

(a) that on the date of his election a returned candidate was not qualified, or was disqualified, to be chosen to fill the seat under the Constitution or this Act or the Government of Union Territories Act, 1963 (20 of 1963); or

(b) that any corrupt practice has been committed by a returned candidate or his election agent or by any other person with the consent of a returned candidate or his election agent; or

(c) that any nomination has been improperly rejected; or

(d) that the result of the election, in so far as it concerns a returned candidate, has been materially affected—

(i) by the improper acceptance of any nomination, or

(ii) by any corrupt practice committed in the interests of the returned candidate by an agent other than his election agent, or

(iii) by the improper reception, refusal or rejection of any vote or the reception of any vote which is void, or

(iv) by any non-compliance with the provisions of the Constitution or of this Act or of any rules or orders made under this Act, the High Court shall declare the election of the returned candidate to be void.

(2) If in the opinion of the High Court, a returned candidate has been guilty by an agent, other than his election agent, of any corrupt practice but the High Court is satisfied—

(a) that no such corrupt practice was committed at the election by the candidate or his



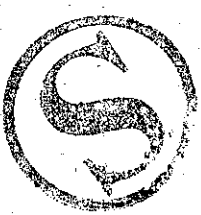
election agent, and every such corrupt practice was committed contrary to the orders, and without the consent, of the candidate or his election agent;

(b) [Omitted];

(c) that the candidate and his election agent took all reasonable means for preventing the commission of corrupt practices at the election; and

(d) that in all other respects the election was free from any corrupt practice on the part of the candidate or any of his agents, then the High Court may decide that the election of the returned candidate is not void.

13. Sub-section (3) of Section 81 prescribes that every election petition shall be accompanied by as many copies thereof as there are respondents mentioned in the petition and every such copy shall be attested by the petitioner under his own signature to be a true copy of the petition.
14. Section 82 deals with the parties to the petition. Clause (b) of Section 82 provides that any other candidate against whom allegations of any corrupt practice are made in the petition shall be joined as respondent to the petition.
15. Section 83 (1) deals with the contents of the petition. The election petition shall (i) contain concise statement of the material facts on which the petitioner relies; (ii) set forth full particulars of any corrupt practice that the petitioner alleges, including as full a statement as possible of the names of the parties alleged to have committed such corrupt practice and the date and place of the commission of each such practice; and (c) shall be signed by the petitioner and verified in the manner laid down in the Code of Civil Procedure, 1908 (*for short "the CPC"*) for the verification of pleadings.



16. Proviso to Section 83 further prescribes that in case of allegation of corrupt practice the petition shall also be accompanied by an affidavit in the prescribed form in support of the allegation of such corrupt practice and the particulars thereof. Sub-section (2) of Section 83 clearly provides that any schedule or annexure to the petition shall also be signed by the petitioner and verified in the same manner.
17. It is pertinent to mention here that no documents filed along with the petition have been annexed or scheduled to the petition as required under the provisions of sub-section (2) of Section 83.
18. Sub-section (1) of Section 86 prescribes that the election petition shall be dismissed, if the same does not comply with the provisions of Section 81 or Section 82 or Section 117. It was further explained that an order of dismissing an election petition under this sub-section shall be deemed to be an order made under clause (a) of Section 98. There is no prescription that the High Court should take decision, at the earliest, for dismissal of election petition before framing the issues for non-compliance of the provisions of the RP Act, 1951. Thus, the election tribunal can consider preliminary objection with regard to maintainability of the petition at any stage even after framing the issues, on merit.
19. In *Shri Udhav Singh v. Madhav Rao Scindia*¹, the Supreme Court observed as under :

"42. All the primary facts which must be proved at the trial by a party to establish the existence of a cause of action or his defence, are "material facts". In the context of a charge of corrupt practice, "material facts" would mean all the basic facts constituting the ingredients of the particular corrupt practice alleged, which the petitioner is bound to

¹ (1977) 1 SCC 511

substantiate before he can succeed on that charge. Whether in an election-petition, a particular fact is material or not, and as such required to be pleaded is a question which depends on the nature of the charge levelled, the ground relied upon and the special circumstances of the case. In short, all those facts which are essential to clothe the petitioner with a complete cause of action, are "material facts" which must be pleaded, and failure to plead even a single material fact amounts to disobedience of the mandate of Section 83(1)(a).

43. "Particulars", on the other hand, are "the details of the case set up by the party". "Material particulars" within the contemplation of clause (b) of Section 83(1) would therefore mean all the details which are necessary to amplify, refine and embellish the material facts already pleaded in the petition in compliance with the requirements of clause (a). "Particulars" serve the purpose of finishing touches to the basic contours of a picture already drawn, to make it full, more detailed and more informative."

20. The Supreme Court in *Jeet Mohinder Singh v. Harinder Singh Jassi*², has considered the issue of law in detail and laid down well settled legal principles in the field of election jurisprudence as under :

"40.....(i) The success of a candidate who has won at an election should not be lightly interfered with. Any petition seeking such interference must strictly conform to the requirements of the law. Though the purity of the election process has to be safeguarded and the court shall be vigilant to see that people do not get elected by flagrant breaches of law or by committing corrupt practices, the setting aside of an election involves serious consequences not only for the returned candidate and the constituency, but also for the public at large inasmuch as re-election involves an enormous load on the public funds and administration. (See *Jagan Nath v. Jaswant Singh*, *Gajanan Krishnaji Bapat v. Dattaji Raghobaji Meghe*.)

² (1999) 9 SCC 386

(ii) Charge of corrupt practice is quasi-criminal in character. If substantiated it leads not only to the setting aside of the election of the successful candidate, but also of his being disqualified to contest an election for a certain period. It may entail extinction of a person's public life and political career. A trial of an election petition though within the realm of civil law is akin to trial on a criminal charge. Two consequences follow. Firstly, the allegations relating to commission of a corrupt practice should be sufficiently clear and stated precisely so as to afford the person charged a full opportunity of meeting the same. Secondly, the charges when put to issue should be proved by clear, cogent and credible evidence. To prove charge of corrupt practice a mere preponderance of probabilities would not be enough. There would be a presumption of innocence available to the person charged. The charge shall have to be proved to the hilt, the standard of proof being the same as in a criminal trial. (See *Quamarul Islam v. S.K. Kanta*, *F.A. Sapa v. Singora*, *Manohar Joshi v. Damodar Tatyaba* and *Ram Singh v. Col. Ram Singh*.)

(iii) The appellate court attaches great value to the opinion formed by the trial Judge more so when the trial Judge recording findings of fact is the same who had recorded the evidence. The appellate court shall remember that the jurisdiction to try an election petition has been vested in a Judge of the High Court. Secondly, the trial Judge may have had the benefit of watching the demeanour of witnesses and forming first-hand opinion of them in the process of evaluation of evidence. The Supreme Court may reassess the evidence and come to its own conclusions on feeling satisfied that in recording findings of fact the High Court has disregarded settled principles governing the approach to evidence or committed grave or palpable errors. (See *Gajanan Krishnaji Bapat v. Dattaji Raghobaji Meghe* and *Kripa Shankar Chatterji v. Gurudas Chatterjee*.)

(iv) Section 83 of the Act requires every election petition to contain a concise statement of the material facts on which the appellant relies. If the election

petition alleges commission of corrupt practice at the election, the election petition shall set forth full particulars of any corrupt practice including as full a statement as possible of the names of the parties alleged to have committed such corrupt practice and the date and place of the commission of each such practice. Every election petition must be signed and verified by the appellant in the manner laid down for the verification of pleadings in CPC. An election petition alleging corrupt practice is required to be accompanied by an affidavit in Form 25 read with Rule 94-A of the Conduct of Elections Rules, 1961. Form 25 contemplates the various particulars as to the corrupt practices mentioned in the election petition being verified by the appellant separately under two headings: (i) which of such statements including particulars are true to the appellant's own knowledge, and (ii) which of the statements including the particulars are true to information of the appellant. It has been held in Gajanan Krishnaji Bapat case that the election petitioner is also obliged to disclose his source of information in respect of the commission of the corrupt practice so as to bind him to the charge levelled by him and to prevent any fishing or roving enquiry, also to prevent the returned candidate from being taken by surprise.

"45.... Here itself, we may observe that material facts and particulars as to commission of corrupt practice are required to be given in the election petition and not in the replication filed much after the expiry of the period of limitation for filing election petition. The material facts and particulars alleged for the first time in the replication and not forming part of the averments made in the election petition cannot be tried and cannot be made the subject-matter of issues framed by the court. The learned Designated Election Judge has taken care to frame the issues only by reference to the averments made in the election petition and not by referring to the averments made for the first time in the replication. Firstly, the respondent does not have an opportunity of denying the averments — whether facts or particulars, introduced for the first time in replication. Secondly, as already stated material facts

and particulars as to corrupt practice are required to be supported by an affidavit in the prescribed pro forma. The replication is not supported by any affidavit in the prescribed pro forma."

21. In *Santosh Yadav v. Narender Singh*³, the Supreme Court observed as under:

"15. A word about the pleadings, Section 83 of the Act mandates an election petition to contain a concise statement of the material facts on which the petitioner relies. The rule of pleadings enable a civil dispute being adjudicated upon by a fair trial and reaching a just decision. A civil trial, more so when it relates to an election dispute, where the fate not only of the parties arrayed before the Court but also of the entire constituency is at a stake, the game has to be played with open cards and not like a game of chess or hide and seek. An election petition must set out all material facts wherefrom inferences vital to the success of the election petitioner and enabling the Court to grant the relief prayed for by the petitioner can be drawn subject to the averments being substantiated by cogent evidence. Concise and specific pleadings settings setting out all relevant material facts, and then cogent affirmative evidence being adduced in support of such averments, are indispensable to the success of an election petition. An election petition, if allowed, results in avoiding an election and nullifying the success of a returned candidate. It is a serious remedy. Therefore, an election petition seeking relief on a ground under section 100 (1)(d) of the Act, must precisely allege all material facts on which the petitioner relies in support of the plea that the result of the election has been materially affected. Unfortunately in the present case all such material facts and circumstances are conspicuous by their absence."

22. Yet again, in *Virender Nath Gautam v. Satpal Singh and Others*⁴, the Supreme Court observed as under :

³ AIR 2002 SC 241

⁴ (2007) 3 SCC 617

"29. From the relevant provisions of the Act reproduced hereinabove, it is clear that an election petition must contain a concise statement of "material facts" on which the petitioner relies. It should also contain "full particulars" of any corrupt practice that the petitioner alleges including a full statement of names of the parties alleged to have committed such corrupt practice and the date and place of commission of such practice. Such election petition shall be signed by the petitioner and verified in the manner laid down in the Code of Civil Procedure, 1908 (hereinafter referred to as "the Code") for the verification of pleadings. It should be accompanied by an affidavit in the prescribed form in support of allegation of such practice and particulars thereof.

30. All material facts, therefore, in accordance with the provisions of the Act, have to be set out in the election petition. If the material facts are not stated in a petition, it is liable to be dismissed on that ground as the case would be covered by clause (a) of sub-section (1) of Section 83 of the Act read with clause (a) of Rule 11 of Order 7 of the Code.

31. The expression "material facts" has neither been defined in the Act nor in the Code. According to the dictionary meaning, "material" means "fundamental", "vital", "basic", "cardinal", "central", "crucial", "decisive", "essential", "pivotal", "indispensable", "elementary" or "primary". [Burton's Legal Thesaurus (3rd Edn.), p. 349]. The phrase "material facts", therefore, may be said to be those facts upon which a party relies for his claim or defence. In other words, "material facts" are facts upon which the plaintiff's cause of action or the defendant's defence depends. What particulars could be said to be "material facts" would depend upon the facts of each case and no rule of universal application can be laid down. It is, however, absolutely essential that all basic and primary facts which must be proved at the trial by the party to establish the existence of a cause of action or defence are material facts and must be stated in the pleading by the party.

32. In the leading case of Philipps v. Philipps, Cotton, L.J. stated:

"What particulars are to be stated must depend on the facts of

each case. But in my opinion it is absolutely essential that the pleading, not to be embarrassing to the defendants, should state those facts which will put the defendants on their guard and tell them what they have to meet when the case comes on for trial."

33. In *Bruce v. Odhams Press Ltd.*, Scott, L.J. referring to *Philipps v. Philipps*¹ observed: (All ER p. 294)

"The cardinal provision in Rule 4 is that the statement of claim must state the material facts. The word 'material' means necessary for the purpose of formulating a complete cause of action; and if any one 'material' statement is omitted, the statement of claim is bad; it is 'demurrable' in the old phraseology, and in the new is liable to be 'struck out' under RSC Order 25 Rule 4 (see *Philipps v. Philipps*); or 'a further and better statement of claim' may be ordered under Rule 7."

34. A distinction between "material facts" and "particulars", however, must not be overlooked. "Material facts" are primary or basic facts which must be pleaded by the plaintiff or by the defendant in support of the case set up by him either to prove his cause of action or defence. "Particulars", on the other hand, are details in support of material facts pleaded by the party. They amplify, refine and embellish material facts by giving distinctive touch to the basic contours of a picture already drawn so as to make it full, more clear and more informative. "Particulars" thus ensure conduct of fair trial and would not take the opposite party by surprise.

35. All "material facts" must be pleaded by the party in support of the case set up by him. Since the object and purpose is to enable the opposite party to know the case he has to meet with, in the absence of pleading, a party cannot be allowed to lead evidence. Failure to state even a single material fact, hence, will entail dismissal of the suit or petition. Particulars, on the other hand, are the details of the case which is in the nature of evidence a party would be leading at the time of trial.

36. In Halsbury's Laws of England (4th Edn.), Vol. 36, para 38, it has been stated:

"38. The function of particulars is to carry into operation the overriding principle that the litigation between the parties, and particularly the trial, should be conducted fairly, openly and without surprises, and incidentally to reduce costs. This function has been variously stated, namely, either to limit the generality of the allegations in the pleadings, or to define the issues which have to be tried and for which discovery is required. Each party is entitled to know the case that is intended to be made against him at the trial, and to have such particulars of his opponent's case as will prevent him from being taken by surprise. Particulars enable the other party to decide what evidence he ought to be prepared with and to prepare for the trial. A party is bound by the facts included in the particulars, and he may not rely on any other facts at the trial without obtaining the leave of the court."

23. The Supreme Court in *People's Union for Civil Liberties (PUCL) and Another v. Union of India and Another*⁵ observed as under :

79. In the result, Section 33-B of the Amended Act is held to be illegal, null and void. However, this judgment would not have any retrospective effect but would be prospective. Writ petitions stand disposed of accordingly.

24. In *People's Union for Civil Liberties (PUCL)* (supra) held the provisions of Section 33B of the RP Act, 1951, to be illegal, null and void with prospective effect, on 13-3-2003. The above-stated view of Hon'ble Shri Shah, J. has been concurred by Hon'ble Shri P. Venkatarama Reddi, J., in a Bench of three Judges. Thus, the returned candidate was not required to comply with the provisions of Section 33B of the RP Act, 1951.

⁵ (2003) 4 SCC 399

25. In *Govind Singh v. Harchand Kaur*⁶, the Supreme Court observed as under :

"44. Dealing with this preliminary question as to whether the election petition filed by the respondent was fit to be dismissed on the ground of the lack of "material facts" with "material particulars", we are fully conscious of the well-settled legal position to the effect that if the election petition fails to disclose any cause of action and there is non-compliance with the mandatory requirements of Section 83 of the Representation of the People Act, 1951 which requires that the election petition should contain material facts on which the petitioner relies, it should set forth full particulars of any corrupt practice including full statement of the names of the parties which is alleged to have been committed along with the specific date and place of the commission of such corrupt practice. But it would also be equally appropriate to bear in mind that although the expression "material facts" has neither been defined in the 1951 Act nor in the Code of Civil Procedure, it has been understood by the courts in general terms to mean the entire bundle of facts which would constitute a complete cause of action. Their Lordships of the Supreme Court in *Ram Sukh* at SCC p.548 have observed thus: (SCC para 13)

"13. ... 'material facts' are facts upon which the plaintiff's cause of action or the defendant's defence depends. ... Broadly speaking, all primary or basic facts which are necessary either to prove the cause of action by the plaintiff or defence by the defendant are 'material facts'. Material facts are facts which, if established, would give the petitioner the relief prayed for. But again, what could be said to be material facts would depend upon the facts of each case and no rule of universal application can be laid down.' "

This authority has also taken note of the ratio of the decision in *Samant N. Balkrishna v. George Fernandez* wherein

⁶ (2011) 2 SCC 621

the three-Judge Bench headed by the then Chief Justice M. Hidayatullah laid down five criteria which are mandatory under Section 83 of the Act for determination as to whether the election petition discloses that it does not lack in material facts and particulars. It was laid down therein that it is mandatory to first of all record a concise statement of material facts and then the fullest possible particulars. Any omission of even a single material fact leads to an incomplete cause of action and statement of claim would be treated as bad. The function of particulars is to present in full, a picture of the cause of action and to make the opposite party understand the case he will have to meet. The learned Judges further held therein that the "material facts" and "material particulars" are distinct matters and while the material facts will mention statements of fact, the particulars will set out the names of persons with date, time and place while stating the material facts as it will not be sufficient merely to quote the words of the section since the efficacy of the material facts in that event would be lost."

26. The principle of law as enunciated by the Supreme Court in the abovestated decisions as well as in other decisions make it clear that the 'material facts' are facts upon which the plaintiff's cause of action or the defendant's defence depends.
27. Section 83 of the RP Act, 1951 requires that the election petition shall contain concise statement of the material facts on which the petitioner relies. If there is an allegation of corrupt practice, the petitioner must set forth full particulars of any corrupt practice that the petitioner alleges, including as full a statement as possible, of the names of the parties alleged to have committed such corrupt practice and the date and place of the commission of each such practice.
28. It is further a trite law that the election petitioner is obliged to disclose his source of information in respect of the commission of the corrupt practice so as to bind him to the charge leveled by him



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and to prevent any fishing or roving enquiry, also to prevent the returned candidate from being taken by surprise.

29. In the case on hand, the election petitioner has not given any fact except certain statements were pleaded to the effect that the returned candidate has not disclosed all the facts in the affidavit, as required under the provisions of Section 33B of the RP Act, 1951, without giving details also what was shown in the affidavit and what has not been shown in the affidavit. In respect of circulation of leaflets/pamphlets, no materials asto who circulated and what was the contents of the material, what was the date and source of information about the circulation of alleged leaflets/pamphlets. The petitioner has further not specified the names of the persons who have allegedly got the said leaflets/pamphlets and distributed on what date at what place. The petition does not disclose the fact asto what was the expenditure shown in the statement of accounts by the returned candidate. After the election or further what was the amount of the alleged leaflets/pamphlets, which was also not shown in the pleadings. Thus, the election petition lacks material facts, as required under the provisions of Section 83 of the RP Act, 1951.

30. The Supreme Court in *Ram Sukh v. Dinesh Aggarwal*⁷, held that the requirement of disclosure of 'materials facts' and 'full particulars' as stipulated in the section 83 of the RP Act, 1951 is mandatory. Thus, for want of non-compliance of the provisions of Section 83, the election petition is liable to be rejected. Paras 10 & 14 of the said decision read as under :

"10. Section 83, the pivotal provision for the present case, requires that: (a) the election petition must contain a concise statement of "material facts" on which the petitioner relies and (b) he

⁷ (2009) 10 SCC 541

should also set forth "full particulars" of any corrupt practices which the petitioner alleges. Proviso to clause (c) of sub-section (1) of Section 83 also provides that where the petitioner alleges any corrupt practice, the election petition shall also be accompanied by an affidavit in the prescribed form in support of the allegation of such corrupt practice and the particulars thereof. It is plain that the requirement of disclosure of "material facts" and "full particulars" as stipulated in the section is mandatory.

14. The requirement in an election petition as to the statement of material facts and the consequences of lack of such disclosure with reference to Sections 81, 83 and 86 of the Act came up for consideration before a three-Judge Bench of this Court in *Samant N. Balkrishna v. George Fernandez*. Speaking for the three-Judge Bench, M. Hidayatullah, C.J., inter alia, laid down that:

(i) Section 83 of the Act is mandatory and requires first a concise statement of material facts and then the fullest possible particulars;

(ii) omission of even a single material fact leads to an incomplete cause of action and statement of claim becomes bad;

(iii) the function of particulars is to present in full a picture of the cause of action and to make the opposite party understand the case he will have to meet;

(iv) material facts and particulars are distinct matters—material facts will mention statements of fact and particulars will set out the names of persons with date, time and place; and

(v) in stating the material facts it will not do merely to quote the words of the section because then the efficacy of the material facts will be lost."

31. In the entire pleadings, it is nowhere mentioned that the documents filed along with the petition are annexed or scheduled to the

petition. Thus, the petition does not comply with the provisions of sub-section (2) of Section 83, also. Even there is no averment in the pleadings that the petitioner is filing a list of documents, which may be treated as schedule or annexure i.e. a part of the petition.

32. For dismissal of the petition, it is not necessary to file a separate application under Order 7 Rule 11 of the CPC. The petition may be examined at the instance of the returned candidate or other respondents as to whether the petition complies with the provisions, as enshrined under Sections 81, 82 & 83 of the RP Act, 1951, as observed earlier that compliance of the abovestated provisions have been held as mandatory.

33. The additional affidavit, which is required to be filed under proviso to sub-section (1) of Section 83 in respect of the allegation of corrupt practice, though has been filed in the case, but not in the form as required under the Rules, 1961. The prescribed form is provided under Rule 94A of the Rules, 1961 i.e. form 25. In form 25 the petitioner has to affirm all the particulars containing particulars of such corrupt practice and also paragraphs of the schedule annexed thereto are true to the knowledge of the petitioner are true to information. The affidavit provides for verification of schedule annexures without mentioning schedule annexed to the election petition. Thus, it may not be held as proper affidavit.

34. The issues on merit were framed subject to consideration of preliminary objection of the returned candidate with regard to maintainability of the election petition. Thus, the examination or cross-examination only in relation to the documents, which were neither scheduled as annexures nor was a part of pleadings, as per the averments made by the petitioner, were also done. Even

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certain documents were produced during the course of examination of the returned candidate.

35. Applying the well settled principles of law to the facts of the present case and in view of the finding recorded hereinabove, the election petition is not maintainable, as the mandatory provisions of Section 83 of the RP Act, 1951 have not been complied with, thus, it is not necessary to go into the merits of the case.

36. In *Santosh Yadav* (supra), the Supreme Court observed as under :

“8. It is well settled by a catena of decisions that the success of a winning candidate at an election should not be lightly interfered with. This is all the more so when the election of a successful candidate is sought to be set aside for no fault of his but of someone else. That is why the scheme of section 100 of the Act, especially clause (d) of sub-section (1) thereof clearly prescribes that in spite of the availability of grounds contemplated by sub-clauses (i) to (iv) of clause (d), the election of a returned candidate shall not be avoided unless and until it was proved that the result of the election in so far as it concerns a return candidate, was materially affected.”

37. For the analysis and the reasons as aforestated, the election petition is dismissed, as not maintainable.

38. There shall be no order asto costs.

Gowri

Sd/-
Satish K. Agnihotri
Judge